

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX_____
JEFFREY PACHECO,

Plaintiff,

-against-

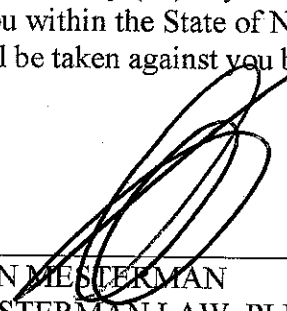
THE CITY OF NEW YORK, NEW YORK CITY
POLICE OFFICER "JOHN DOE #1" and NEW YORK
CITY POLICE OFFICER ALVAREZ,Defendants.

TO THE ABOVE NAMED DEFENDANT(S)

Index No.:

SUMMONSPlaintiff designates Bronx County
the place of trialThe basis of venue is site of
occurrence

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorney(s) within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: New York, New York
July 1, 2024

DAN MESTERMAN
MESTERMAN LAW, PLLC
Attorneys for Plaintiff
JEFFREY PACHECO
30 Broad Street – 14th Floor
New York, New York 10004
(718) 412-1717**Defendant's Address:**THE CITY OF NEW YORK: 100 Church Street, New York, New York.
NEW YORK CITY POLICE OFFICER "JOHN DOE #1": c/o THE CITY OF NEW YORK,
100 Church Street, New York, New York.
NEW YORK CITY POLICE OFFICER ALVAREZ: c/o THE CITY OF NEW YORK, 100
Church Street, New York, New York.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX_____
JEFFREY PACHECO,

Index No.:

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE OFFICER "JOHN DOE #1" and NEW YORK
CITY POLICE OFFICER ALVAREZ,

Defendants.

Plaintiff, JEFFREY PACHECO, by his attorneys, MESTERMAN LAW, PLLC,
complaining of the defendants herein, respectfully sets forth and alleges upon information and
belief as follows:

1. That all the times hereinafter mentioned, plaintiff was, and still is, a
resident of the City of Binghamton, State of New York.
2. At all the times herein, the defendant, **CITY OF NEW YORK**, was and
still is a duly licensed Municipal Corporation authorized to transact business in the City of
New York, County of Bronx.
3. Upon information and belief, the defendant, **CITY OF NEW YORK**,
employed **NEW YORK CITY POLICE OFFICER "JOHN DOE #1" and NEW YORK
CITY POLICE OFFICER ALVAREZ**, (first name unknown), who were herein duly
employed and acting New York City Police Officers (or other ranking officers) of the City of
New York, County of Bronx, State of New York and upon information and belief, the
defendants, **NEW YORK CITY POLICE OFFICER "JOHN DOE #1" and NEW YORK
CITY POLICE OFFICER ALVAREZ**, were and still are, at all times herein mentioned,
residents of the City and State of New York.

4. Upon information and belief, that all times herein, the defendants, **NEW YORK CITY POLICE OFFICER "JOHN DOE #1" and NEW YORK CITY POLICE OFFICER ALVAREZ**, were and still are employees of The City of New York Police Department as Police Officers (or other ranking officers), and were at all times herein acting within the furtherance and scope of their employment with **THE CITY OF NEW YORK**. The defendant, **CITY OF NEW YORK**, is liable and responsible for all of those acts committed by the defendants, **NEW YORK CITY POLICE OFFICER "JOHN DOE #1" and NEW YORK CITY POLICE OFFICER ALVAREZ**, pursuant to the doctrine of respondent superior. **THE CITY OF NEW YORK** expressly and implicitly condoned all of the actions of **NEW YORK CITY POLICE OFFICER "JOHN DOE #1" and NEW YORK CITY POLICE OFFICER ALVAREZ**, set forth herein and hereinafter.

5. Upon information and belief, **THE CITY OF NEW YORK** at all times herein, condoned all of the acts of the defendants, **NEW YORK CITY POLICE OFFICER "JOHN DOE #1" and NEW YORK CITY POLICE OFFICER ALVAREZ**, as herein and hereinafter set forth.

6. Upon information and belief, each and all of the acts of the defendants alleged herein were done by defendants, and each of them, both as individuals, and under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, City of New York and the County of New York, and under the authority of their office as Police Officers for New York City.

7. Upon information and belief, that on or about April 2, 2023 at approximately 3:30 p.m. at the intersection of East 233rd Street and Webster Avenue, County of Bronx, City, and State of New York, an unmarked vehicle pulled in front of plaintiff who

was operating a scooter and blocked plaintiff from driving further. The occupants of the vehicle were not wearing uniforms or identified themselves as police officers, so plaintiff frightened and unaware that the car's occupants were police officers, ran on foot from the intersection. **NEW YORK CITY POLICE OFFICER "JOHN DOE #1"**, appeared to have dark skin, forcefully tackled plaintiff to the ground. After plaintiff was on the ground and fully restrained, **NEW YORK CITY POLICE OFFICER ALVAREZ** punched plaintiff in the nose. At no time did either **NEW YORK CITY POLICE OFFICER "JOHN DOE #1"** or **NEW YORK CITY POLICE OFFICER ALVAREZ** identify themselves as police officers. Plaintiff was forcibly and violently tackled, violently thrown to the ground, and assaulted and battered in front of the public, threatened, and illegally placed under arrest and imprisoned by the defendants, **NEW YORK CITY POLICE OFFICER "JOHN DOE #1"** and **NEW YORK CITY POLICE OFFICER ALVAREZ**, working for and on behalf of **THE CITY OF NEW YORK**.

8. Upon information and belief the defendants, **CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER "JOHN DOE #1"** and **NEW YORK CITY POLICE OFFICER ALVAREZ**, unlawfully became abusive toward the plaintiff without any justification and said accusations were completely false and plaintiff was unlawfully placed under arrest. (Arrest Number B23613781)

9. Upon information and belief, the plaintiff, **JEFFREY PACHECO**, was held, under arrest, and imprisoned for approximately two days.

10. Upon information and belief, during the time the plaintiff was unlawfully held at the aforesaid location, plaintiff was otherwise forced to undergo great

emotional and mental anguish and physical harm, and loss of liberty and freedom and was kept and imprisoned in handcuffs.

11. Upon information and belief, following two days, the plaintiff was released and advised that he was free to go. All charges against the plaintiff were eventually dismissed.

12. Prior to the commencement of this action, within 90 days following the incident, a Notice of Claim was duly served herein on the defendant. That a 50-H hearing was held on November 1, 2023, and more than thirty days have expired since the filing of the Notice of Claim and the defendant has failed and neglected to adjust the claim. This action is timely brought.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST THE DEFENDANTS CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER "JOHN DOE #1" and NEW YORK CITY POLICE OFFICER ALVAREZ ON BEHALF OF PLAINTIFF, JEFFREY PACHECO

13. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "12", above as if fully set forth herein.

14. Upon information and belief, on or about April 2, 2023 at approximately 3:30 p.m. at the intersection of East 233rd Street and Webster Avenue, County of Bronx, City and State of New York, while the plaintiff was lawfully and properly at said location, the defendant, **CITY OF NEW YORK**, by and through their employees, defendants, **NEW YORK CITY POLICE OFFICER "JOHN DOE #1" and NEW YORK CITY POLICE OFFICER ALVAREZ**, blocked the plaintiff without identifying themselves as police officers, violently threw him to the ground and assaulted and battered plaintiff and then arrested him. This arrest was conducted in a violent and abusive manner during the course of which

defendant **NEW YORK CITY POLICE OFFICER ALVAREZ** struck plaintiff in the face, and abused plaintiff with the intent and purpose of harming, humiliating and embarrassing plaintiff in the presence of the public generally, and particularly, the people present at the scene.

15. Upon information and belief, after searching plaintiff's person, which search did not reveal any incriminatory or dangerous articles defendant continued to detain plaintiff, in handcuffs, at the above location.

16. Upon information and belief, plaintiff was held and imprisoned for approximately two days. Said imprisonment and confinement was all without probable cause or justification and was all precipitated by the unlawful and improper charges and actions of the New York City Police Department and their employees and said actions of defendants were done intentionally and with malice.

17. That plaintiff was aware of said imprisonment and confinement and did not consent thereto. The confinement and imprisonment was not privileged.

18. Upon information and belief, said confinement and imprisonment was without probable cause, was improper and without justification and the plaintiff, **JEFFREY PACHECO**'s movements were restricted. This confinement, imprisonment and restriction of the plaintiff's movement was against his will and plaintiff was aware of said confinement, restriction and imprisonment.

19. Upon information and belief, by the reason of the aforesaid **FALSE IMPRISONMENT** of the plaintiff, **JEFFREY PACHECO**, by the defendants, the plaintiff sustained physical, mental and emotional injuries, humiliation, loss of esteem, loss of liberty, loss of freedom, loss of time, loss of enjoyment of life, and is entitled to punitive damages,

against **NEW YORK CITY POLICE OFFICER "JOHN DOE #1" and NEW YORK CITY POLICE OFFICER ALVAREZ**, and was otherwise injured an amount exceeding the jurisdictional limits of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER "JOHN DOE #1" and NEW YORK CITY POLICE OFFICER ALVAREZ ON BEHALF OF PLAINTIFF, JEFFREY PACHECO

20. Plaintiff repeats, reiterates and realleges each and every allegation number "1" through "19" above, as if fully set forth herein.

21. Upon information and belief, that on or about April 2, 2023 at approximately 3:30 p.m. at the intersection of East 233rd Street and Webster Avenue, County of Bronx, City, and State of New York, while the plaintiff was lawfully and properly at said location, the defendant, **CITY OF NEW YORK**, by and through their employees, defendants, **NEW YORK CITY POLICE OFFICER "JOHN DOE #1" and NEW YORK CITY POLICE OFFICER ALVAREZ**, did falsely arrest the plaintiff.

22. Upon information and belief, at all times herein, the defendants, **CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER "JOHN DOE #1" and NEW YORK CITY POLICE OFFICER ALVAREZ**, did assert proper legal authority to detain and arrest the plaintiff, and the plaintiff reasonably believed that the defendants did have the power to hold him against his will.

23. Upon information and belief, said arrest was without probable cause, improper and without justification, and the plaintiff, **JEFFREY PACHECO**, movement was restricted and confined.

24. Upon information and belief, the aforesaid arrest and restriction of plaintiff's movements was against his will and plaintiff was aware of said arrest and restrictions and confinement against his will.

25. Upon information and belief, said arrest was improper, unlawful and without proper justification and without probable cause.

26. Upon information and belief, at all times herein, the aforesaid false arrest by the defendants was made with malice and the defendants did intend to falsely arrest the plaintiff.

27. Upon information and belief, by reason of the **FALSE ARREST** of the plaintiff, **JEFFREY PACHECO**, by the defendants, **CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER "JOHN DOE #1" and NEW YORK CITY POLICE OFFICER ALVAREZ**, the plaintiff sustained physical, mental and emotional injuries, humiliation, loss of esteem, loss of liberty, loss of time, loss of enjoyment of life and is entitled to punitive damages against **NEW YORK CITY POLICE OFFICER "JOHN DOE #1" and NEW YORK CITY POLICE OFFICER ALVAREZ**, and was otherwise damaged all an amount exceeding the jurisdictional limits of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST DEFENDANTS CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER "JOHN DOE #1" and NEW YORK CITY POLICE OFFICER ALVAREZ ON BEHALF OF PLAINTIFF JEFFREY PACHECO

28. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "27", above as if fully set forth hereinafter.

29. Upon information and belief, the defendant, **CITY OF NEW YORK**, owed a duty to the general public to sufficiently train and educate their police officers.

30. Upon information and belief, the aforesaid police officers, defendants, **NEW YORK CITY POLICE OFFICER "JOHN DOE #1" and NEW YORK CITY POLICE OFFICER ALVAREZ** were not sufficiently trained and experienced in carrying out their duties as New York City Police Officers. In addition, upon information and belief, the defendant, **CITY OF NEW YORK**, was further negligent in hiring and retaining **NEW YORK CITY POLICE OFFICER "JOHN DOE #1" and NEW YORK CITY POLICE OFFICER ALVAREZ**, as employees despite having actual and or constructive notice that said employees were unfit and not qualified to carry out their duties as Police Officers, and possessed violent propensities.

31. Upon information and belief, that **THE CITY OF NEW YORK** was negligent, careless and reckless in not sufficiently training their police officers and that all of the aforesaid defendants did not perform a proper investigation before committing the aforesaid conduct, and in negligently hiring and retaining defendants, **NEW YORK CITY POLICE OFFICER "JOHN DOE #1" and NEW YORK CITY POLICE ALVAREZ**, the defendants were otherwise negligent.

32. That as a direct and proximate result of the defendant, **THE CITY OF NEW YORK's** negligence, including, but not limited to: Their failure to properly and adequately train their police officers, and of the negligence of the defendants, **NEW YORK CITY POLICE OFFICER "JOHN DOE #1" and NEW YORK CITY POLICE OFFICER ALVAREZ**, all of the aforesaid tortious conduct was committed upon the plaintiff causing him serious and severe physical and emotional injuries.

33. By reason of the aforesaid **NEGLIGENCE** of defendants, **CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER "JOHN DOE #1" and NEW**

YORK CITY POLICE OFFICER ALVAREZ, the plaintiff, **JEFFREY PACHECO**, did suffer physical injuries, shock, mental distress, emotional stress, material loss, emotional damages, loss of esteem, humiliation, loss of enjoyment of life, loss of liberty, loss of time and physical damage, all in an amount exceeding the jurisdictional limits of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANTS CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER "JOHN DOE #1" and NEW YORK CITY POLICE OFFICER ALVAREZ ON BEHALF OF PLAINTIFF, JEFFREY PACHECO

34. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "33", above as if fully set forth hereinafter.

35. Upon information and belief, during all the times herein, the individual defendants, and each of them, separately and in concert, acted under the cover of law and statutes, ordinances, regulations, customs and usages of the State of New York, County of Bronx, City of New York.

36. Upon information and belief, each of the defendants, separately and in concert engaged in illegal conduct herein before and herein after mentioned to the injury of the plaintiff and deprived plaintiff of the rights, privileges and immunities, secured to the plaintiff by the constitution of the United States, and Federal Laws of the United States. The defendants, in assaulting plaintiff and imprisoning and arresting the plaintiff deprived the plaintiff of his constitutional rights and annuities secured by the United States Constitution and freedom from illegal seizure, illegal search, fear from legal detention, coercion and intimidation, all secured by the Constitution of the United States and 42 United States Code Section 1983. The defendants acted knowingly and purposely with the specific intention to deprive the plaintiff of his aforementioned rights.

37. Upon information and belief, the actions and conduct described herein by **NEW YORK CITY POLICE OFFICER "JOHN DOE #1" and NEW YORK CITY POLICE OFFICER ALVAREZ**, and the New York City Police Department constituted and demonstrates an official unconstitutional policy and custom of abuse and misconduct by the New York City Police Department, **NEW YORK CITY POLICE OFFICER "JOHN DOE #1" and NEW YORK CITY POLICE OFFICER ALVAREZ** constituted a continuing pattern of abuse and misconduct by the New York City Police Department, **NEW YORK CITY POLICE OFFICER "JOHN DOE #1 and NEW YORK CITY POLICE OFFICER ALVAREZ**, and said misconduct and official unconstitutional policy caused plaintiff to be subjected to and deprived his constitutional rights.

38. Upon information and belief, as a direct and proximate result of the aforesaid, the plaintiff suffered physical and mental injuries and anguish, public scorn, humiliation, loss of esteem, loss of liberty, loss of time, loss of enjoyment of life, and the plaintiff was otherwise damaged, all in an amount exceeding the jurisdictional limits of all lower Courts.

39. Plaintiff hereby demands compensation and punitive damages together reasonable attorney's fees pursuant to 42 United State Code Section 1983 and other Civil Rights Statutes.

AS AND FOR FIFTH CAUSE OF ACTION AGAINST DEFENDANTS CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER "JOHN DOE #1" and NEW YORK CITY POLICE OFFICER ALVAREZ ON BEHALF OF PLAINTIFF JEFFREY PACHECO

40. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "39", above as if fully set forth hereinafter.

41. Upon information and belief, on or about April 2, 2023 at approximately 3:30 p.m., at the location above described, while the plaintiff was lawfully and properly at said location, and not resisting arrest, the defendant, **CITY OF NEW YORK**, by and through their employees, defendants, **NEW YORK CITY POLICE OFFICER "JOHN DOE #1" and NEW YORK CITY POLICE OFFICER ALVAREZ**, civilly assaulted the plaintiff **JEFFREY PACHECO**.

42. Upon information and belief, at all times herein, the defendant, **CITY OF NEW YORK**, and the defendants, **NEW YORK CITY POLICE OFFICER "JOHN DOE #1" and NEW YORK CITY POLICE OFFICER ALVAREZ**, placed the plaintiff, **JEFFREY PACHECO**, in imminent fear of violent contact.

43. Upon information and belief, the defendants, **CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER "JOHN DOE #1" and NEW YORK CITY POLICE OFFICER ALVAREZ**, acts were intentional and made with malice all against the plaintiff, **JEFFREY PACHECO**.

44. Upon information and belief, at all times herein, the plaintiff was aware of the defendants' actions, and the plaintiff was aware of the fear and threat of the imminent offensive violent contact.

45. Upon information and belief, by reason of **CIVIL ASSAULT** of the plaintiff, **JEFFREY PACHECO**, by the aforesaid defendants, **CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER "JOHN DOE #1" and NEW YORK CITY POLICE OFFICER ALVAREZ**, plaintiff **JEFFREY PACHECO**, sustained personal injury, physical, mental and emotional injuries and plaintiff demands punitive damages and was otherwise damaged in an amount exceeding the jurisdictional limits of all lower Courts

and demands punitive damages against **NEW YORK CITY POLICE OFFICER "JOHN DOE #1" and NEW YORK CITY POLICE OFFICER ALVAREZ.**

AS AND FOR A SIXTH CAUSE OF ACTION AGAINST DEFENDANTS CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER "JOHN DOE #1" and NEW YORK CITY POLICE OFFICER ALVAREZ ON BEHALF OF PLAINTIFF JEFFREY PACHECO

46. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "45", above as if fully set forth hereinafter.

47. Upon information and belief, on or about April 2, 2023 at approximately 3:30 p.m., at the above described location, while the plaintiff was lawfully and properly at said location, the defendant, **CITY OF NEW YORK**, by and through their employees, defendants, **NEW YORK CITY POLICE OFFICER "JOHN DOE #1" and NEW YORK CITY POLICE OFFICER ALVAREZ**, civilly battered the plaintiff, **JEFFREY PACHECO**, and did strike the plaintiff and violently threw plaintiff to the ground with significant force.

48. That at the aforesaid time and place the defendant, **CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER "JOHN DOE #1" and NEW YORK CITY POLICE OFFICER ALVAREZ**, did batter the plaintiff by subjecting the plaintiff, **JEFFREY PACHECO**, to offensive bodily conduct and conducting an improper, unnecessary and illegal and search of plaintiff.

49. Upon information and belief, the plaintiff, **JEFFREY PACHECO**, never consented to said contact, nor was said contact justified or privileged.

50. Upon information and belief, the aforesaid battery by the defendants upon the plaintiff was made intentionally and with malice, all against the plaintiff's will, and the plaintiff was fully aware of said battery.

51. Upon information and belief, by reason of the **CIVIL BATTERY** of the plaintiff, **JEFFREY PACHECO**, by the defendants, **CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER "JOHN DOE #1" and NEW YORK CITY POLICE OFFICER ALVAREZ**, the plaintiff, **JEFFREY PACHECO**, sustained serious and severe personal, physical, mental and emotional injuries, and plaintiff demand punitive damages, and was otherwise damaged all in an amount exceeding the jurisdictional limits of all lower Courts and plaintiff demands punitive damages against **NEW YORK CITY POLICE OFFICER "JOHN DOE #1" and NEW YORK CITY POLICE OFFICER ALVAREZ**.

AS AND FOR A SEVENTH CAUSE OF ACTION AGAINST DEFENDANTS, CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER "JOHN DOE #1" and NEW YORK CITY POLICE OFFICER ALVAREZ ON BEHALF OF PLAINTIFF, JEFFREY PACHECO

52. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "51", above as if fully set forth hereinafter.

53. Upon information and belief, on or about April 2, 2023 at approximately 3:30 p.m. at the location described above, while the plaintiff was lawfully and properly at said location, and not resisting arrest, the defendants, **CITY OF NEW YORK**, by and through their employees, defendants, **NEW YORK CITY POLICE OFFICER "JOHN DOE #1" and NEW YORK CITY POLICE OFFICER ALVAREZ**, did intentionally inflict emotional harm upon the plaintiff, **JEFFREY PACHECO** and/or acted with a complete disregard of the substantial probability of causing severe emotional distress to plaintiff, **JEFFREY PACHECO**.

54. Upon information and belief, that at the aforesaid time and place the defendants, **CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER "JOHN DOE #1" and NEW YORK CITY POLICE OFFICER ALVAREZ**, did batter and assault the plaintiff in the presence of the public in an effort to humiliate and otherwise intimidate and embarrass plaintiff by subjecting the plaintiff, **JEFFREY PACHECO**, to offensive bodily conduct.

55. Upon information and belief, the plaintiff, **JEFFREY PACHECO**, never consented to said contact, nor was said contact justified or privileged.

56. Upon information and belief, the aforesaid intentional infliction of emotional harm by the defendants upon the plaintiff was made intentionally and with malice, all against the plaintiff's will, and the plaintiff was fully aware of same.

57. Upon information and belief, the actions performed by defendants, **CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER "JOHN DOE #1" and NEW YORK CITY POLICE OFFICER ALVAREZ**, were so shocking and outrageous that they exceeded all reasonable bounds of decency and constituted extreme and outrageous conduct.

58. Upon information and belief, there was a causal connection between the outrageous conduct described herein by defendants, **CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER "JOHN DOE #1" and NEW YORK CITY POLICE OFFICER ALVAREZ** plaintiff, **JEFFREY PACHECO**'s severe emotional distress and injuries.

59. Upon information and belief, the above actions conducted by the defendants, **CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER "JOHN**

DOE #1" and NEW YORK CITY POLICE OFFICER ALVAREZ, caused severe emotional distress to plaintiff.

60. Upon information and belief, the above actions of defendants, **CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER "JOHN DOE #1" and NEW YORK CITY POLICE OFFICER ALVAREZ**, were done with the desire to cause such severe stress to plaintiff under circumstances known to defendants, **NEW YORK CITY POLICE OFFICER "JOHN DOE #1" and NEW YORK CITY POLICE OFFICER ALVAREZ**, which made it substantially certain that the result would follow and acted recklessly with utter disregard of the consequences that might follow.

61. Upon information and belief, by reason of the **INTENTIONAL INFLICTION OF EMOTIONAL HARM** of the plaintiff, **JEFFREY PACHECO**, by the defendants, **CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER "JOHN DOE #1" and NEW YORK CITY POLICE OFFICER ALVAREZ**, the plaintiff, **JEFFREY PACHECO**, sustained serious and severe personal, physical, mental and emotional injuries, and plaintiff demands punitive damages, and was otherwise damaged all in an amount exceeding the jurisdictional limits of all lower Courts and plaintiff demands punitive damages against **NEW YORK CITY POLICE OFFICER "JOHN DOE #1" and NEW YORK CITY POLICE OFFICER ALVAREZ**.

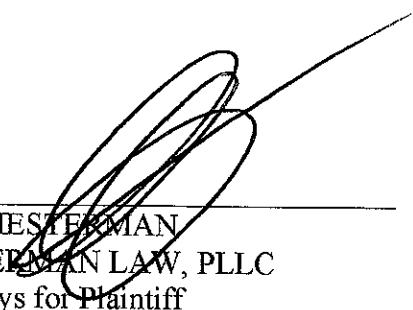
AS AND FOR AN EIGHTH CAUSE OF ACTION AGAINST DEFENDANTS, CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER "JOHN DOE #1" and NEW YORK CITY POLICE OFFICER ALVAREZ ON BEHALF OF PLAINTIFF, JEFFREY PACHECO

62. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "61", above as if fully set forth hereinafter.

WHEREFORE, plaintiff demands judgment against the defendants jointly and

severally, in an amount exceeding the jurisdictional limits of all lower Courts on the First Cause of Action and in amount exceeding the jurisdictional limits of all lower Courts on the Second Cause of Action and in amount exceeding the jurisdictional limits of all lower Courts on the Third Cause of Action and in amount exceeding the jurisdictional limits of all lower Courts on the Fourth Cause of Action and in amount exceeding the jurisdictional limits of all lower Courts on the Fifth Cause of Action and in an amount exceeding the jurisdictional limits of all lower Courts on the Sixth Cause of Action and in an amount exceeding the jurisdictional limits of all lower Courts on the Seventh Cause of Action, plus punitive damages against defendants, **NEW YORK CITY POLICE OFFICER "JOHN DOE #1" and NEW YORK CITY POLICE OFFICER ALVAREZ**, in the amount exceeding the jurisdictional limits of all lower Courts together with costs, interest and disbursements of this action, and together with such other and further relief as to this Court may seem just and proper.

Dated: New York, New York
July 1, 2024



DAN MESTERMAN
MESTERMAN LAW, PLLC
Attorneys for Plaintiff
JEFFREY PACHECO
30 Broad Street – 14th Floor
New York, New York 10004
(718) 412- 1717

Index No.: Year 2024
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

JEFFREY PACHECO,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER "JOHN DOE #1" and
NEW YORK CITY POLICE OFFICER ALVAREZ,

Defendants.

SUMMONS AND COMPLAINT

MESTERMAN LAW, PLLC
Attorneys for Plaintiff
30 Broad Street – 14th Floor
New York, New York 10004
(718) 412-1717

To:

Service of a copy of the within is hereby admitted.
Dated:

.....
Attorney(s) for

PLEASE TAKE NOTICE

☐ *that the within is a (certified) true copy of an Order*
entered in the office of the clerk of the within named Court on

**NOTICE OF
ENTRY**

☐ *that an Order of which the within is a true copy will be presented for settlement to the*
Hon.

☐ *one of the judges of the within named Court, at,, on .*

**NOTICE OF
SETTLEMENT**

Dated:

MESTERMAN LAW, PLLC
30 Broad Street – 14th Floor
New York, New York 10004
(718) 412-1717